

बिड दस्तावेज़ / Bid Document

बिड विवरण / Bid Details	
बिड बंद होने की तारीख/समय / Bid End Date/Time	20-07-2026 17:00:00
बिड खुलने की तारीख/समय / Bid Opening Date/Time	20-07-2026 17:30:00
बिड पेशकश वैधता (बंद होने की तारीख से) / Bid Offer Validity (From End Date)	180 (Days)
मंत्रालय/राज्य का नाम / Ministry/State Name	Ministry Of Steel
विभाग का नाम / Department Name	Steel Authority Of India Limited
संगठन का नाम / Organisation Name	Bokaro Steel Plant
कार्यालय का नाम / Office Name	Bslp61
शिकायत निवारण के संपर्क विवरण / Contact details of Grievance redressal	HOD Email id :harsh.nigam@sail.in Buyer Email id: buyer72.sail.bokaro@gembuyer.in
कुल मात्रा / Total Quantity	1200
वस्तु श्रेणी / Item Category	MACHINE CRUSHED STONE BALLAST, SIZE-40-60 , LAYING OF MACHINE CRUSHED STONE BALLAST
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	LAYING OF MACHINE CRUSHED STONE BALLAST
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	Coarse Aggregate (V2) Conforming to IS 383, Fine Aggregate (V2) Conforming to IS 383
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	- Coarse Aggregate (V2) Conforming to IS 383 - Fine Aggregate (V2) Conforming to IS 383
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़ / Document required from seller	Certificate (Requested in ATC), Additional Doc 1 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer

बिड विवरण/Bid Details	
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	5
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	Yes
रिवर्स नीलामी योग्यता नियम/RA Qualification Rule	H1-Highest Priced Bid Elimination
क्रेता के लिए उपलब्ध आईटीसी/ITC available to buyer	Yes
बिड का प्रकार/Type of Bid	Two Packet Bid
प्राथमिक उत्पाद श्रेणी/Primary product category	MACHINE CRUSHED STONE BALLAST, SIZE-40-60
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	4 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
Payment Timelines	Payments shall be made to the Seller within 30 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Group wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

आवश्यकता/Required	No
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बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता / MII Purchase Preference

एमआईआई खरीद वरीयता / MII Purchase Preference	Yes
मेक इन इंडिया विक्रेताओं को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ तक की सीमा में है / Purchase Preference to MII sellers available upto price within $L1+X\%$	20
मेक इन इंडिया खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Maximum Percentage of Bid quantity for MII purchase preference	50
सार्वजनिक खरीद (मेक-इन-इंडिया को प्राथमिकता) आदेश 2017 के अनुसार केवल क्लास 1/क्लास 2 के स्थानीय आपूर्तिकर्ताओं को ही भागीदारी की अनुमति है दिनांक 16.09.2020 (समय-समय पर संशोधित एवं लागू) / Allow participation only from Class 1/Class 2 local suppliers as per the Public procurement(Preference to Make-in-india) order 2017 date 16.09.2020(as amended and applicable time to time)	Yes, in compliance with the MII ORDER : DPIIT Order(as amended and applicable time to time)

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	25

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. Preference to Make In India products (For bids < 200 Crore):Preference shall be given to Class 1 local supplier

as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. However, eligible micro and small enterprises will be allowed to participate .The buyers are advised to refer the OM No.F.1/4/2021-PPD dated 18.05.2023.

[OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017 and its subsequent Orders/Notifications issued by concerned Ministry .Benefits of MSE will be allowed only if seller/service provider is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2. Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

3. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

4. Reverse Auction would be conducted amongst all the technically qualified bidders except the Highest quoting bidder. The technically qualified Highest Quoting bidder will not be allowed to participate in RA. However, H-1 will also be allowed to participate in RA in following cases:

- i. If number of technically qualified bidders are only 2 or 3.
- ii. If Buyer has chosen to split the bid amongst N sellers, and H1 bid is coming within N.
- iii. In case Primary product of only one OEM is left in contention for participation in RA on elimination of H-1.
- iv. If L-1 is non-MSE and H-1 is eligible MSE and H-1 price is coming within price band of 15% of Non-MSE L-1
- v. If L-1 is non-MII and H-1 is eligible MII and H-1 price is coming within price band of 20% of Non-MII L-1

If the buyer has mentioned MSE purchase preference in ATC then service provider is required to upload necessary documents for MSE purchase preference for verification by the buyer during evaluation.

Evaluation Method (Group Wise Evaluation Method)

Contract will be awarded schedulewise and the determination of L1 will be done separately for each schedule. The details of item-consignee combination covered under each schedule are as under:

Evaluation on Schedules	Item/Category	Consignee/Reporting Officer	Consignee Address	Quantity
SCHEDULE 1	Machine Crushed Stone Ballast, Size-40-60	Kunal Kumar	DGM(Stores), Stores Department, Steel Gate, Gate No.-9, Bokaro Steel Plant, Bokaro Steel City-827001, Jharkhand 827001	600
	Laying Of Machine Crushed Stone Ballast	Kunal Kumar	DGM(Stores), Stores Department, Steel Gate, Gate No.-9, Bokaro Steel Plant, Bokaro Steel City-827001, Jharkhand 827001	600

MACHINE CRUSHED STONE BALLAST, SIZE-40-60 (600 cubic meter)

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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इनपुट कर क्रेडिट(आईटीसी) तथा रिवर्स प्रभार (आरसीएम)/Input Tax Credit(ITC) and Reverse Charge(RCM) Details

जीएसटी पर इनपुट कर क्रेडिट /ITC on GST	जीएसटी उपकर कर क्रेडिट /ITC on GST Cess
100%	NA

प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Kunal Kumar	827001,DGM(Stores), Stores Department, Steel Gate, Gate No.-9, Bokaro Steel Plant, Bokaro Steel City-827001, Jharkhand	600	45

LAYING OF MACHINE CRUSHED STONE BALLAST (600 cubic meter)

(क्रमशः श्रेणी 1 और श्रेणी 2 के स्थानीय आपूर्तिकर्ता के रूप में अर्हता प्राप्त करने के लिए आवश्यक/Minimum 50% and 20% Local Content required for qualifying as Class 1 and Class 2 Local Supplier respectively)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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इनपुट कर क्रेडिट(आईटीसी) तथा रिवर्स प्रभार (आरसीएम)/Input Tax Credit(ITC) and Reverse Charge(RCM) Details

जीएसटी पर इनपुट कर क्रेडिट /ITC on GST	जीएसटी उपकर कर क्रेडिट /ITC on GST Cess
100%	NA

प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Kunal Kumar	827001,DGM(Stores), Stores Department, Steel Gate, Gate No.-9, Bokaro Steel Plant, Bokaro Steel City-827001, Jharkhand	600	45

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions**1. Certificates**

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

2. Generic

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

3. Generic

Bidder shall submit the following documents along with their bid for Vendor Code Creation:

- Copy of PAN Card.
- Copy of GSTIN.
- Copy of Cancelled Cheque.
- Copy of EFT Mandate duly certified by Bank.

4. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

ADDITIONAL TERMS AND CONDITIONS**IMPORTANT NOTE**

- Price & Evaluation:** The bidder has to quote price inclusive of GST with all other charges, as applicable. Evaluation will be carried out on the basis of the total all inclusive landed price at the consignee destination.

on. The successful bidder shall furnish a complete breakup of the quoted price in the prescribed price bid format prior to award of contract.

This bid contains two line items, (For Supply & Laying) namely

- i) MACHINE CRUSHED STONE BALLAST, SIZE(40-60) - 600 cubic meter
- ii) LAYING OF MACHINE CRUSHED STONE BALLAST - 600 cubic meter

Bidders are required to quote their prices separately for each line item (Supply & Laying). However, evaluation of bids shall be carried out on a group basis, considering the total cost of both line items (Supply & Laying) together for 600 cubic meter. The Lowest Evaluated Bidder (L 1) shall be determined on the combined total of the quoted prices for both items.

b) Verification of credentials:

i. SAIL reserves the right to verify any supporting document (s) submitted by the participating tenderer/ Bidder from its source (document issuing authority).

ii. In the interest of expeditious completion of verification, the participating tenderer/ Bidder shall provide a list of each supporting document on its letter-head as per "ANNEXURE-S" along with the contact detail, postal address, email address, landline, mobile number on the issuing authority of each supporting document for verification.

iii. Non-verification of any supporting document or information, at the sole discretion of SAIL does not absolve the tenderer/ Bidder of its absolute responsibility to provide only genuine document(s) in support of eligibility conditions.

iv. In case a supporting document or information is found to be fake/ forged/ tampered/ non genuine/ at any stage during tendering process and even after placement of purchase order/ work order the tenderer is liable for punitive action as per extend guideline of SAIL.

c) Adverse Report

In case any specific adverse report is received against a tenderer, as an information or upon enquiry made by SAIL, in respect of capabilities and performance of the tenderer, after receipt of tender (even after opening of price bid), the quotation/ tender submitted by such tenderer is liable to be rejected.

d) Document supporting financial turnover (audited profit & loss accounts / balance sheet of the company) shall be submitted with Unique Document Identification Number (UDIN). as applicable.

e) The Vendors are required to submit following duly filled & signed formats along with techno-commercial eligibility documents:

- i. Format for Acceptance of General Terms & Conditions
- ii. Undertaking by Bidder
- iii. Make in India Declaration (As per Government Guidelines)
- iv. Basic information about the vendor
- v. **Affidavit (Annexure-A)** -Duly Notarized affidavit on non-judicial stamp paper of Rs. 100/-
- vi. Worksheet for Eligibility Criteria
- vii. Annexure S (Verification of Credentials)

ELIGIBILITY CRITERIA

1.1 Only indigenous manufacturers/suppliers are eligible to quote. The tenderer shall submit Certificate from Govt/Govt authorized agency to show that bidder is the manufacturer/supplier of "CIVIL BUILDING /ROAD MATERIAL".

1.2 The intending indigenous tenderer shall submit copies of the Purchase orders & excise/GST invoices in support of supply of "CIVIL BUILDING/ROAD MATERIAL" successfully completed by them to any of the following organization during last seven years from Bid invitation date

- Govt. organization
- PSU
- Public Ltd company
- Joint venture company where at least one partner is Govt Organisation or PSU

1.3 In support of successful completion of purchase orders mentioned and submitted by the tenderers as required in part -1.1, they shall submit performance certificate from the purchaser or submit a self-attested declaration that the item's supplied against above purchase order has no adverse report from the purchaser.

er as on bid submission date and the above purchase order is a regular order, not a trial order.

1.4 In case, the supply is affected indirectly, then the tenderer has to submit relevant documents to establish that the end user of the item supplied against the above purchase order is amongst the four types of organization mentioned above.

2.1 To assess financial capability, the tenderer shall submit audited annual balance sheet for any consecutive three of last four years from the bid invitation date. Average annual financial turnover of the tenderer for any consecutive three of last four years, from the bid invitation date shall be equal to or more than **Rs. 11.01 Lacs**

11.01 Lacs

2.2 Provision for the firm who has started business since last two years:

Case1: Turnover is in increasing trend then Average of the two turnover values must be equal to or more than Rs. 11.01 Lacs

Case 2: Turnover is in decreasing trend then Lower of the two turnover values must be equal to or more than Rs. 11.01 Lacs

2.3 Provision for the firm who has started Business since last one year only.

50% of the turnover value must be equal to or more Rs. 11.01 Lacs

2.4 A relaxation of 15% in Financial Turnover will be given for MSEs who are eligible for preference and Start-ups that are recognized by Department for Industry & Internal Trade (DPIIT). However, both MSE and Start-ups shall have to meet eligibility conditions for quality & technical specifications/requirement.

3. The tenderer is required to submit self-attested photocopies of documents in support of their eligibility and experience along with the techno commercial bid. In addition, bidder shall submit an affidavit in enclosed format (**Annexure-A**) declaring that the documents submitted by them are genuine.

4. BSL reserves the right to call for original documents for verification at any time during tendering, evaluation and/or the execution of the contract. In case of any documents/information submitted by bidder(s) found to be false or containing any misrepresentation of having any fraudulent declaration in it, then in such eventuality, legal action (including cancellation of contract, banning of business dealing, damages, criminal proceedings etc.) as deemed fit may be initiated by BSL against the bidder.

Special Terms and conditions

1) **Scope of Work:** Material supply and laying of material is in the scope of supplier.

(Supply and laying, manual spreading of stone on switch yard surface with approx thickness of 200mm)

2) **Delivery Term:** FOR - BSL STORE, B S CITY

3) **Delivery Schedule:** Delivery will be 45 days from placement of PO. The delivery will be in approx 45 trucks. This will be done in the period of 45 days as per delivery of PO.

4) **Weighment:** The material will be accepted by truck volume. Weighment is not required.

5) **Payment Terms :** 100% payment against GRN.

6) **Unloading Responsibility:** Party / Supplier. The material will be diverted from store to any or all of the three locations (MSDS-1,4 and 5) as directed by indenter at a distance of 5 to 6 KM.

7) **Inspection :**

Inspection Plan No 01

Stage Inspection: Waived

Pre-dispatch Inspection (Indigenous): Waived

Final Receipt Inspection:

Receipt Inspection- 1. Visual Inspection 2. Verification of Docs

Documents to be submitted:

Guarantee Certificate

BSL reserves the right to conduct inspection at any stage prior to despatch or after receipt including testing

g of materials irrespective of inspection clause given in the PO.

All Test Reports / Documents mentioned in PO have to be submitted in addition to the documents mentioned in Inspection Plan along with the material or whenever asked for.

Clear, visible identification mark (IM) of the supplier / Manufacturer has to be given on the material and it has to be encircled, failing which the material may be rejected. The details of the "IM" its location on the material has to be clearly mentioned in the Invoice / challan / packing list

8) Liquidated Damages

In event of supply not being effected within the contractual delivery schedule liquidated damages @ 0.5%, not by way of penalty, of the value of the materials without taxes, duties & freight, per week or part thereof of delay, subject to maximum of 10%, (or as applicable in the case of MSE as per extant SAIL MSE guideline) is recoverable from the Supplier without prejudice to the rights of Purchaser to procure the balance material at the risk and cost of the Supplier. The payment or deduction of such damages shall not relieve the Supplier from the contractual obligations to complete the supply or balance portion thereof in time as stipulated in the Contract.

9) Security Deposit Bank Guarantee (SDBG)

i. Within 21 (twenty one) days from the date of Placement of Order, the successful Bidder should furnish Security Deposit in the form of a bank guarantee as per proforma, for an amount covering 5% (five percent) of the Basic Value (excluding taxes, duties and freight) of the contract.

In case the supplier delays submission of Security Deposit / Performance Guarantee, a penalty of 0.2% of the original SD / PG amount per completed day of delay, limited to an amount not exceeding 5% of the original SD / PG amount shall be applicable.

No change in the prescribed proforma of the bank guarantee for Security Deposit is acceptable. The SDBG should be established in favour of respective SAIL Plant through any scheduled Bank except Co-operative and Gramin Bank and should be received in the office of the Purchase Manager of the respective Steel Plant who has issued the purchase order within 21 (twenty one) days of the date of Placement of order. The Stamp Paper shall be purchased in the name of the concerned Bank and stamp paper shall be of Rs.100/- denomination

ii. The SDBG shall be kept valid and in full force and effect till a period of three months from the date of delivery of the last consignment of the Purchase order. However the seller shall release the SDBG on application after the seller has discharged all his obligations under this contract. The SDBG shall be operable at the local Branches of issuing Bank located at respective steel plant.

iii. Security Deposit may be submitted in the form of online transfer, Demand Draft, Banker's Cheque, Bank Guarantee (BG) or Fixed Deposit Receipt (FDR) from any Scheduled Commercial Bank except Co-operative and Gramin Bank but shall not be accepted in cash

iv. Suppliers shall have the option to permit respective steel plant to retain an amount equivalent to SDBG amount from their initial bills in lieu of submission of SDBG.

10) All other terms will be as per SAIL-P1.

5. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid &

resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-

compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---